

Court No. - 36

Case :- WRIT - C No. - 23524 of 2011

Petitioner :- Premveer Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Devendra Singh

Respondent Counsel :- C.S.C., Pankaj Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble S.C. Agarwal, J.

On prayer made by Sri Pankaj Kumar Shukla, learned Counsel appearing for the respondent no. 4, the case is directed to be put-up as fresh on 11.5.2011 so as to enable him to obtain instructions in the matter.

Order Date :- 22.4.2011

aks

Court No. - 36

Case :- WRIT - C No. - 23524 of 2011

Petitioner :- Premveer Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Devendra Singh

Respondent Counsel :- C.S.C., Pankaj Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Mrs. Jayashree Tiwari, J.

It is submitted that on the basis of a checking made on 28th November, 2009, a demand notice was issued to the petitioner which was followed by a Recovery Citation date 14.02.2011. Relevant provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 were not followed before raising demand against the petitioner on the ground of the alleged theft of electricity.

Sri Pankaj Shukla, learned counsel for the respondent no. 4 has obtained instructions in the matter. As per the said instructions, Sri Pankaj Shukla states that on the basis of checking made on 28.11.2009, a Provisional Assessment was made in respect of the petitioner. As no objections were received from the petitioner, the Provisional Assessment was treated to be Final Assessment, and demand was raised against the petitioner. On query being made by the Court, Sri Pankaj Shukla has stated that no specific order of Final Assessment was passed in this regard.

Sri Devendra Singh, learned counsel for the petitioner submits that by not passing any specific final order of assessment in the case of the petitioner, the petitioner has been deprived of his right of filing an Appeal under Section 127 of the Electricity Act, 2003.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 1 to 3 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent no. 4 has been accepted by Sri Pankaj Shukla.

Counter affidavit on behalf of the respondents may be filed within six weeks.

Rejoinder affidavit may be filed by the next date fixed in the matter.

List this matter before appropriate Bench on 4th August, 2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that recovery proceedings against the petitioner pursuant to the

Recovery Citation dated 14.02.2011 (Annexure 1 to the Writ Petition), will remain stayed till the next date fixed in the matter provided within four weeks from today, the petitioner deposits an amount of Rs. 71,000/- with the respondent no. 4.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of failure on the part of the petitioner in making the deposit, as directed above, this order will stand automatically vacated.

Order Date :- 19.5.2011

Monika

Court No. - 37

Case :- WRIT - C No. - 23524 of 2011

Petitioner :- Premveer Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Devendra Singh

Respondent Counsel :- C.S.C., Pankaj Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Sunil Hali, J.

Let the amount be deposited in terms of the order dated 19.5.2011 within two weeks from today. List on 23rd August, 2011.

Order Date :- 4.8.2011

mt

Court No. - 37

Case :- WRIT - C No. - 23524 of 2011

Petitioner :- Premveer Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Devendra Singh

Respondent Counsel :- C.S.C., Pankaj Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Vinod Prasad, J.

As prayed, counter affidavit be filed within three weeks and no more.

List thereafter.

The interim order is extended till then.

Order Date :- 23.8.2011

AKG/-

Court No. - 37

Case :- WRIT - C No. - 23524 of 2011

Petitioner :- Premveer Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Devendra Singh

Respondent Counsel :- C.S.C., Pankaj Shukla

Hon'ble R.K. Agrawal, J.

Hon'ble Surendra Kumar, J.

Passed over on the request of Sri Pankaj Shukla. The interim order is extended till the next date of listing.

Order Date :- 14.9.2011

samz

Court No. - 21

Case :- WRIT - C No. - 23524 of 2011

Petitioner :- Premveer Singh

Respondent :- State of U.P. and Others

Counsel for Petitioner :- Devendra Singh

Counsel for Respondent :- C.S.C., Pankaj Shukla

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

None appears to press the petition even in revised call.

The writ petition is dismissed for want of prosecution.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.5.2023

SL